

What is justice?

This question breaks down into a number of sub-questions. We can ask what it means for a **person** to be just. We can also ask what it means for an **international system** of distinct societies to be just.

Today we are going to focus on the question of what it means for an individual society — which for our purposes we can take to be a nation — to be just.

This question is sometimes called the question of **distributive justice**, because it asks about the just distribution of goods within a society at a time.

What goods are we talking about?

One category is what we might call **material goods**. These include things like food and property and income.

But these are not the only goods. Other goods include **political rights** (such as the right to vote) and **liberties** (such as the freedom to choose where one lives or whom one marries or what job one pursues). As we will see, there are others.

This is enough to describe a society which most of us would agree
to be unjust.

At some initial time t , the members of a society are living in a state of relative equality. But at a later time $t+1$, some sub-group A takes all of the property of sub-group B. Group A consolidates its power, and enslaves the members of group B, depriving them by force of their political rights and liberties (such as freedom of association and the freedom to pursue an education). By time $t+2$, group A owns all of the property, and gives members of group B only the minimum needed for survival. Members of group B are only permitted to serve group A in the ways that members of group A direct.

It is universal that, at $t+2$, this is an unjust society.

The interesting question is: why is this? What would have to be different for this to be a just society? Different theories of justice provide different answers to this question.

Our first theory of justice provides a very straightforward answer to this question. On this view, what is unjust about our imagined society is its **inequality**. On this view, a just society is one in which goods are distributed equally. This view is called **egalitarianism**.

What would it mean for goods to be distributed equally? A simple answer would be that everyone gets exactly the same goods. Everyone gets just the same food, just the same kind of residence, etc.

But if you think about it, this wouldn't be an ideal set-up. Suppose that I love broccoli and hate spinach, and you are the reverse. Wouldn't it be better for me to get more broccoli and less spinach, and for you to get more spinach and less broccoli? And yet this would seem to be unjust on our simple egalitarian view.

The natural response to this on behalf of the egalitarian is to say that an equal distribution of goods need not mean that we each get exactly the same goods. Instead, perhaps we each should get exactly the same opportunity to buy goods. In a society like ours, this would mean that we would each get the same amount of **money** and the same **income**. I could then use this money on broccoli, and you could use it on spinach. The fact that we made different choices would not make the distribution of goods unequal.

A second problem for the egalitarian is the problem of how to handle inequalities that emerge over time.

Even if we specify that you and I get the same income at every period in our lives, we might still end up with very unequal distributions of goods. I might be very wasteful with my resources whereas you might be very clever with yours, so that after 20 years you have accumulated a large amount of resources. Or maybe my house was destroyed by a tornado, and yours was not.

It looks like, at the end of this 20 year period, we might have a very unequal distribution of resources. This leads to a dilemma for the egalitarian. Should we simply permit this kind of inequality, or should there be an occasional redistribution of resources to restore equality?

The problem is exacerbated if we think about families. Suppose that you are clever with your resources and want to pass them along to your children, whereas I give my children nothing. Then it looks like your children will have much greater resources than mine from the start. Obviously over a number of generations, the difference might become vast.

Here the same kind of dilemma arises. Do we simply permit these vast differences in resources, even from the beginning of one's life? That looks unjust, from an egalitarian perspective.

Or do we instead consistently redistribute wealth, for example by not allowing parents to pass along their resources to their children? Many see this as an unacceptable restriction on one's freedom.

The egalitarian seems forced to either permit inequalities which it was the purpose of the view to avoid or adopt very strong redistributive principles which restrict freedom in the use of one's resources.

This might convince you that the egalitarian's goal of securing equality of goods across people is not, in the end, viable. Let's look at an alternative theory, which is in some ways the opposite of egalitarianism. This is **utilitarianism**: the view that the just society is the one which provides the greatest happiness to the greatest number of people.

Recall the version of egalitarianism on which goods are constantly being redistributed so as to ensure equality. The utilitarian will point out that this is likely to remove incentives to use one's goods productively. Suppose that you consider putting hard work into creating an invention which many people would enjoy. If you knew that the money you would earn from doing this would simply be redistributed to ensure equality, wouldn't that make you less likely to do it?

But, the utilitarian says, we would all prefer to be in a society in which people had incentives to produce things which would be of benefit to all. And there is nothing unjust about someone using their own labor to create something of benefit to all, and being rewarded for doing so. So we should reject any view of the just society — like egalitarianism — which would rule this out.

Here is an objection to utilitarianism:

The utilitarian thinks that the most just society is the one in which the most total goods are produced. For simplicity, we can imagine that this is the society with the highest total GDP. But it might be that the way of maximizing GDP would concentrate wealth in the hands of very few people, so that (for example) 5% of the population controlled almost all of the wealth, and most of the population lacks the income to afford basic goods like safe housing, a constant food source, and access to health care. No society like this could be just.

The utilitarian will reply that this objection is based on a misunderstanding of their position. The utilitarian does not say that the most just society is the one with the most overall goods; it is the one with the most total **happiness**.

And, they will continue, a society like the one described above is very unlikely to be the one with the most total happiness. That is because of the phenomenon of **diminishing marginal utility**.

Imagine two people — one a billionaire, and one living paycheck to paycheck. Now imagine that we give each of them \$50,000. It is plausible that this would increase both of their levels of happiness. But would it increase both of their levels of happiness to the same degree?

It would not. It seems that that sum of money would mean much more to the person living paycheck to paycheck.

But this can be turned into a reply to the objection we are discussing. It is very unlikely, the utilitarian will say, that a society where almost all of the goods are in the hands of just a few will be the one with the most overall happiness. That is because transferring some of those goods from the rich to those who are much less well off will increase the happiness of the latter more than it will decrease the happiness of the former.

But, arguably, the objection can be revived in a different form. It seems possible that a society might maximize happiness by taking away the political rights of a small minority group and forcing them into slavery. Yes, they will be much less happy. But we can imagine that this change would greatly increase the happiness of the others. Maybe the others greatly dislike the minority group, and would get extra happiness from them being enslaved.

Many would be (strongly) inclined to say that this is not a just society. But it is
seems to be a consequence of the utilitarian theory of justice that it would be.

Many take the moral of this kind of case to be that what matters for justice is not just the **total** happiness in a society — it also matters how goods, and happiness, are distributed across members of that society.

The philosopher John Rawls put the point this way:



“[Utilitarianism] is the consequence of extending to society the principle of choice for one man, and then, to make this extension work, conflating all persons into one ... Utilitarianism does not take seriously the distinction between persons.”

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